

SHAED PLATFORM

TERMS AND CONDITIONS

These Platform Terms and Conditions (these "Terms and Conditions" or "GTCs") are incorporated by reference into all order forms (each an "Order Form") entered into between SHAED, INC., a Delaware corporation with offices located at One TeamQuest Way, Clear Lake, Iowa 50428 ("SHAED") and the party named in the Order Form ("Customer" or "Platform Participant"). These Terms and Conditions and the Order Form executed by SHAED and Customer constitute a binding agreement and together are collectively referred to as the "Agreement". Capitalized terms used but not defined herein have the meanings set forth in Schedule A (Definitions) attached hereto.

1. SERVICES AND PLATFORM ACCESS

1.1 Nature and Purpose of the Services. SHAED has built the Platform containing modules (each, a "Module") for the purpose of enabling various users of the Platform ("Users") to communicate and transact with one another to configure, price, quote, track, and sell commercial vehicles and related products and services. Subject to the terms and conditions of the Agreement, SHAED will provide the Services identified on the Order Form for the Fees identified on the Order Form.

1.2 License Grant. Subject to Customer's compliance with the terms of this Agreement, SHAED's policies of general application, applicable Laws, and Customer's timely payment of the Fees, SHAED hereby grants to Customer a personal, restricted, non-exclusive, non-sublicensable, non-transferable, non-assignable right, during the Term, to access and use the Platform and the Services specified in the Order Form solely for use by Authorized Users in accordance with the terms and conditions herein. Such use is limited to Customer's internal business purposes. The total number of Authorized Users will not exceed the number set forth in the Order Form, except as expressly agreed to in writing by the Parties and subject to any appropriate adjustment of the Fees payable hereunder.

1.3 Documentation License. SHAED hereby grants to Customer a non-exclusive, non-sublicensable, non-transferable (except in compliance with Section 13.6) license to use the Documentation during the Term solely for Customer's internal business purposes in connection with its use of the Services.

1.4 Service and System Control. Except as otherwise expressly provided in this Agreement, as between the Parties:

(a) SHAED has and will retain sole control over the operation, provision, maintenance, and management of the SHAED Materials; and

(b) Customer has and will retain sole control over the operation, maintenance, and management of, and all access to and use of, the Customer Systems, and sole responsibility for all access to and use of the SHAED Materials by any Person by or through the Customer Systems or any other means controlled by Customer or any Authorized User, including any: (i) information, instructions, or materials provided by any of them to the Services or SHAED; (ii) results obtained from any use of the Services or SHAED Materials; and (iii) conclusions, decisions, or actions based on such use.

1.5 Reservation of Rights. Nothing in this Agreement grants any right, title, or interest in or to (including any license under) any IP Rights in or relating to the Services, SHAED Materials, or Third-Party Materials, whether expressly, by implication, estoppel, or otherwise.

All right, title, and interest in and to the Services, the SHAED Materials, and the Third-Party Materials are and will remain with SHAED and the respective rights holders in the Third-Party Materials. All other rights in and to the SHAED Materials and Third-Party Materials are expressly reserved by SHAED and the respective third-party licensors.

1.6 Availability of Platform. SHAED will use commercially reasonable efforts to make the Platform available to Customer and its Authorized Users during the Term on a ninety-five percent (95%) Uptime basis, excluding scheduled maintenance. SHAED may modify the Platform features and functionalities at any time.

1.7 Suspension. SHAED may, directly or indirectly, and by use of any lawful means, suspend, terminate, or otherwise deny Customer's, any Authorized User's, or any other Person's access to or use of all or any part of the Platform or SHAED Materials, without incurring any resulting obligation or liability, if: (a) SHAED receives a judicial or other governmental demand or order, subpoena, or law enforcement request that expressly or by reasonable implication requires SHAED to do so; or (b) SHAED believes, in its sole discretion, that: (i) Customer or any Authorized User has failed to comply with any material term of this Agreement, or accessed or used the Platform or SHAED Materials beyond the scope of the rights granted or for a purpose not authorized under this Agreement; (ii) Customer or any Authorized User is, has been, or is likely to be involved in any fraudulent, misleading, or unlawful activities; or (iii) this Agreement expires or is terminated.

1.8 Service Management. Each Party shall, throughout the Term, maintain within its organization a service manager to serve as such Party's primary point of contact for day-to-day communications, consultation, and decision-making regarding this Agreement. Each service manager shall be responsible for providing all day-to-day consents and approvals on behalf of such Party under this Agreement. Each Party shall ensure its service manager has the requisite organizational authority, skill, experience, and other qualifications to perform in such capacity.

1.9 Changes. SHAED reserves the right to change, amend or modify the terms and conditions contained in these Terms and Conditions, any policy or guidelines on SHAED's website, and/or its services, or to discontinue the offering, support, and maintenance of any Service to Customer, at any time by providing Customer with advance notice concerning changes, amendments or modifications. Unless otherwise specified, any changes, amendments or modifications will be effective upon the first to occur of either (i) Customer's indication of acceptance of such change, amendment or modification, or (ii) thirty (30) days after Customer's receipt of such change, amendment or modification, unless Customer sends written notice to SHAED of its objection to such change, amendment or modification during such period, and Customer agrees that Customer's continued use of the Services after such time shall constitute Customer's acceptance of such changes, amendments or modifications.

1.10 Subcontractors. SHAED may from time to time in its discretion engage third parties to perform Services (each, a "Subcontractor"). SHAED shall notify Customer of any Subcontractors engaged to perform material Services.

1.11 Service Levels. Where the Order Form specifies Service Levels, the following shall apply: (a) SHAED shall use commercially reasonable efforts to meet the applicable Uptime commitment; (b) in the event of a Service Level Failure, Customer must submit a written claim for Service Credits within thirty (30) days after the end of the applicable Service Period; (c) Service Credits shall be applied against the next invoice and shall not be redeemable for cash; (d) Service Credits for any Service Period shall not exceed the

applicable Service Credit percentage specified in the Order Form; and (e) Service Credits are Customer's sole and exclusive remedy for any Service Level Failure.

2. CUSTOMER OBLIGATIONS AND USE RESTRICTIONS

2.1 Use Restrictions. Customer shall not, and shall not permit any Authorized User or other Person to, access or use the Services or SHAED Materials except as expressly permitted by this Agreement and, in the case of Third-Party Materials, the applicable third-party license agreement. For purposes of clarity and without limiting the generality of the foregoing, Customer shall not, except as this Agreement expressly permits:

(a) copy, modify, or create derivative works or improvements of the Services or SHAED Materials;

(b) rent, lease, lend, sell, sublicense, assign, distribute, publish, transfer, or otherwise make available any Services or SHAED Materials to any Person, including on or in connection with the internet or any time-sharing, service bureau, software as a service, cloud, or other technology or service;

(c) reverse engineer, disassemble, decompile, decode, adapt, or otherwise attempt to derive or gain access to the source code of the Services or SHAED Materials, in whole or in part;

(d) bypass or breach any security device or protection used by the Services or SHAED Materials or access or use the Services or SHAED Materials other than by an Authorized User through the use of their own then-valid Access Credentials;

(e) input, upload, transmit, or otherwise provide to or through the Services or SHAED Systems any information or materials that are unlawful or injurious, or contain, transmit, or activate any Harmful Code;

(f) damage, destroy, disrupt, disable, impair, interfere with, or otherwise impede or harm in any manner the Services, SHAED Systems, or SHAED's provision of services to any third party, in whole or in part;

(g) remove, delete, alter, or obscure any trademarks, Specifications, Documentation, warranties, or disclaimers, or any copyright, trademark, patent, or other intellectual property or proprietary rights notices from any Services or SHAED Materials, including any copy thereof;

(h) access or use the Services or SHAED Materials in any manner or for any purpose that infringes, misappropriates, or otherwise violates any IP Right or other right of any third party (including by any unauthorized access to, misappropriation, use, alteration, destruction, or disclosure of the data or confidential information of any other SHAED customer), or that violates any applicable Law;

(i) access or use the Services or SHAED Materials for purposes of competitive analysis of the Services or SHAED Materials, the development, provision, or use of a competing software service or product, or any other purpose that is to SHAED's detriment or commercial disadvantage;

(j) access or use the Services or SHAED Materials in, or in association with, the design, construction, maintenance, or operation of any hazardous environments, systems, applications, or products, any safety response systems or other safety-critical applications, or any other use or application in which the use or failure of the Services could lead to personal injury or severe physical or property damage; or

(k) otherwise access or use the Services or SHAED Materials beyond the scope of the authorization granted under this Agreement.

2.2 Customer Cooperation. Customer shall provide SHAED with the Customer Data requested by SHAED in order to provide the Services to Customer, including but not limited to body invoices from Customer's suppliers. Customer also grants to SHAED permission and the right to obtain an export of data and information from Customer's inventory provider, DMS provider and webhost or web hosting service provider and agrees to cooperate with SHAED in obtaining such information from the respective providers. Customer agrees to provide links from Customer's website to the Customer branded commercial inventory powered by SHAED and authorizes SHAED to promote the commercial inventory site to buyers of Customer's products or services on behalf of Customer.

2.3 Compliance with Laws and Policies. Customer shall carry on its business in compliance with all applicable Laws and with all SHAED policies of general application to the Platform.

2.4 Non-Solicitation. During the Term and for two (2) years after, Customer shall not, and shall not assist any other Person to, directly or indirectly, in any manner recruit or solicit (other than by general advertisement not directed specifically to any Person or Persons) for employment or engagement as an independent contractor any Person then or within the prior six (6) months employed or engaged by SHAED or any of its subcontractors. In the event of a violation of this Section 2.4, SHAED will be entitled to liquidated damages equal to the compensation paid by SHAED to the applicable employee or contractor during the prior twelve (12) months, plus the recruitment costs incurred by SHAED in replacing such person.

2.5 Customer Systems and Cooperation. Customer shall at all times during the Term: (a) set up, maintain, and operate in good repair and in accordance with the Specifications all Customer Systems on or through which the Services are accessed or used; (b) provide SHAED Personnel with such access to Customer's premises and Customer Systems as is necessary for SHAED to perform the Services in accordance with this Agreement; and (c) provide all cooperation and assistance as SHAED may reasonably request to enable SHAED to exercise its rights and perform its obligations under and in accordance with this Agreement.

2.6 Effect of Customer Failure or Delay. SHAED is not responsible or liable for any delay or failure of performance caused in whole or in part by Customer's delay in performing, or failure to perform, any of its obligations under this Agreement (each, a "Customer Failure").

2.7 Corrective Action and Notice. If Customer becomes aware of any actual or threatened activity prohibited by Section 2.1, Customer shall, and shall cause its Authorized Users to, immediately: (a) take all reasonable and lawful measures within their respective control that are necessary to stop the activity or threatened activity and to mitigate its effects; and (b) notify SHAED of any such actual or threatened activity.

3. TRANSACTION TERMS

3.1 Approved Products. Customer may offer only Products approved by SHAED on the Platform, as listed on the Order Form, as amended by the Parties from time to time. SHAED shall not be in the chain of title for any such sales and SHAED shall have no responsibility for the quality, characteristics, compliance with Laws, timeliness of delivery, conformity with sample or description, or safety of the Products.

3.2 Legal Right to Sell. Customer may offer or sell a Product on the Platform only if Customer has a legal right to offer or sell that Product. Customer may utilize the services of

a Third Party for fabrication or provision of the Product only if that Third Party is approved by SHAED, acting reasonably.

3.3 Listings. Customer represents and warrants that any information set forth in listings that Customer requests SHAED to make public in connection with the Services ("Listings"), including, but not limited to, Customer Data, is true and correct and that such listing contains the necessary information and disclosures to comply with applicable law and regulations.

3.4 Orders and Transactions. Any User (including Customer) may place Orders through the Platform to be fulfilled using the SHAED checkout system. SHAED will electronically transmit to Customer and such User the Order transaction information that SHAED determines is necessary to fulfill the applicable Order. SHAED will send an automated email message to Customer and User confirming existence of the Order and will collect all proceeds from such transactions on behalf of the User to be paid.

3.5 Payment Processing. Customer hereby authorizes SHAED, as Customer's authorized agent, to accept payment from other Users for remittance to Customer, and when a User pays SHAED, it shall be construed as the User paying Customer directly.

3.6 Order Fulfillment. Where Customer is a seller, Customer will, at its own cost and expense, be solely responsible for, and bear all liability for, the fulfillment of each Order, including without limitation, packaging, shipping and delivering the Products and any customer service relating to the Products.

3.7 Product Warranties. Customer will advertise on the Platform any warranty applicable to the Products (which warranty shall issue directly from Customer to the User purchasing the Products), and Customer shall honor and fully perform the warranty.

3.8 Effect of Termination on Open Orders. If any Orders remain open as of the effective date of termination, Customer shall be obligated to continue to fulfill such Orders and perform any other of its obligations related thereto, unless otherwise mutually agreed to by the Parties.

3.9 Non-Exclusive Rights. Customer acknowledges and agrees that its use of the Platform for the purchase and sale of its vehicles, products or services is not exclusive to Customer and SHAED may extend rights to the Platform and provide similar services to competitors of Customer.

3.10 Advertising. SHAED is authorized to display advertisements of any original vehicle manufacturer (OEM), upfitter or other seller in SHAED's sole discretion. If applicable and included in the Services, SHAED agrees to display the advertisements provided by Customer ("Ads") on the Platform and in the manner and frequency set forth in the Order Form. Unless otherwise agreed, Customer will provide all advertising materials to SHAED at least three (3) business days before the desired date of publication. If advertisement materials are not provided in accordance with this policy, SHAED cannot guarantee that the corresponding advertisement will commence by the start date indicated in the Order Form. All changes to an advertisement must be made in writing prior to the lead time deadline. All advertisements are subject to SHAED's approval. SHAED reserves the right to reject any Ads at any time, for any reason whatsoever (including, but not limited to, the opinion of SHAED that any placement thereof may subject SHAED to criminal or civil liability). Customer grants SHAED a non-exclusive, worldwide, fully paid license to use, perform, reproduce, display, transmit and distribute any Ads. No changes may be made to any advertisement without Customer's prior written consent.

3.11 Vehicle Data Rights. Notwithstanding anything to the contrary herein, Customer covenants and agrees to allow SHAED to monitor the use of, and to access and use any data or information relating to the use of, any vehicles sold by or on behalf of Customer

through the Platform. Further, notwithstanding anything to the contrary contained in the Agreement, or in any privacy policy, Customer hereby grants to SHAED a non-exclusive, worldwide, perpetual, irrevocable, royalty-free, sublicensable (through multiple tiers) right to access and use for any purpose any and all data and information acquired through (i) Customer's use of the Platform and (ii) the use of any items purchased or sold through the Platform, including, without limitation, vehicle usage data. Customer further covenants and agrees to assist and cooperate fully with SHAED as necessary to secure and maintain access to, and enable the use of, such data and information, including, without limitation, by allowing SHAED to monitor the use of vehicles Customer sells through the Platform.

4. INTELLECTUAL PROPERTY RIGHTS

4.1 SHAED Materials. All right, title, and interest in and to the SHAED Materials, including all IP Rights therein, are and will remain with SHAED and, with respect to Third-Party Materials, the applicable third-party providers own all right, title, and interest, including all IP Rights, in and to the Third-Party Materials. Customer acknowledges and agrees that it has no right, license, or authorization with respect to any of the SHAED Materials or Third-Party Materials (including any IP Rights therein) except as expressly set forth in Section 1.2 or the applicable third-party license, in each case subject to Section 2.1.

4.2 Customer Branding and Trade Dress. The Customer's trade dress and branding belong to Customer, and are not transferred to SHAED. SHAED shall have the right to maintain the Customer branding and trade dress and all IP Rights therein solely for the purpose of providing the Services to the Customer during the Term.

4.3 SHAED Ownership of Enhanced Data and Services. Customer acknowledges and agrees that all rights, title and interest in the Services, including Enhanced Data and any information or services incorporating data of SHAED or Enhanced Data, and any custom products or services created or provided in connection with or related to the Agreement, including all copyrights, patents, trade secrets, trade dress and other proprietary rights, and any derivative works thereof, shall belong solely and exclusively to SHAED or its licensors.

4.4 Resultant Data. Customer hereby unconditionally and irrevocably grants to SHAED an assignment of all right, title, and interest in and to the Resultant Data, including all IP Rights relating thereto.

4.5 License to SHAED. During the term of this Agreement, Customer grants SHAED a non-exclusive, assignable, transferrable, worldwide license to use Customer trademarks and trade names on SHAED's website and in promotional materials distributed by SHAED and to identify Customer as a user of the Services.

4.6 License from SHAED. SHAED hereby grants to Customer, during the term of this Agreement, a nontransferable license under SHAED's copyrights to use any SHAED software products and associated documentation provided to Customer in connection with the Services and all such software products and documentation necessary for Customer's utilization of the Services as provided for in the Agreement.

4.7 Publicity. Customer will not use the name, logo, trademarks or trade names of SHAED or any of its affiliates or otherwise, directly or indirectly, refer to SHAED or any of its affiliates in any publicity release, promotional material, customer or partner list, advertising, marketing or business-generating effort, whether written or oral, without the prior written consent of SHAED.

5. DATA RIGHTS AND LICENSING

5.1 Ownership of Customer Data. SHAED acknowledges and agrees that as between SHAED and Customer, Customer is and will remain the sole and exclusive owner of all right, title, and interest in and to all Customer Data, including all IP Rights relating thereto. Customer Data shall not be utilized by SHAED for any purpose other than as expressly permitted by the Agreement.

5.2 License to Customer Data. Customer authorizes and grants to SHAED a perpetual, worldwide, sublicensable, freely assignable, transferrable, irrevocable license and right to use, analyze, process, aggregate, reproduce, distribute, modify, create derivative works or databases from, and include in the SHAED services provided to others or other products and services offered by SHAED to others, the Customer Data and other information made available to or provided to SHAED hereunder, provided that SHAED shall not disclose any (i) non-public personal information ("NPI") or (ii) Customer's Confidential Information, other than in aggregated form.

5.3 Consent to Use Customer Data. Customer hereby irrevocably grants all such rights and permissions in or relating to Customer Data as are necessary or useful to SHAED, its Subcontractors, and SHAED Personnel to enforce this Agreement and exercise SHAED's rights and perform SHAED's obligations hereunder.

5.4 Use of Enhanced Data. Customer agrees that it shall use the Services and any Enhanced Data only for purposes expressly permitted hereunder and solely for Customer's internal business use, and shall not copy, make derivative works from, reverse engineer or decompile, sell, offer to sell or otherwise commercially exploit, assign, redistribute, disclose, disseminate or otherwise make available in any manner expressly not provided in the Agreement, any of the SHAED services or Enhanced Data, or any part thereof, or any of the concepts and/or technology or proprietary rights embodied therein, to any third party, without the prior written consent of SHAED in each instance, or use of the Service or any Enhanced Data made available by SHAED to engage in any activity that is identical or similar to, or competitive with, SHAED services.

5.5 Data Backup. The SHAED Systems are programmed to perform routine data backups as set out in SHAED's backup policy in effect from time to time (the "Backup Policy"). In the event of any loss, alteration, destruction, damage, or corruption of Customer Data caused by SHAED Systems or Services, SHAED will, as its sole obligation and liability and as Customer's sole remedy, use commercially reasonable efforts to restore the Customer Data to the extent possible from SHAED's then most current backup of such Customer Data in accordance with the then current Backup Policy.

5.6 Data Privacy and Security. SHAED will employ security measures in accordance with applicable Law and SHAED's data privacy and security policy as amended from time to time (the "Privacy and Security Policy"). SHAED maintains a data breach plan in accordance with all Laws and shall implement the procedures required under such data breach plan on the occurrence of a data breach.

5.7 Customer Data Responsibility. Customer has and will retain sole responsibility for: (a) all Customer Data, including its content and use; (b) all information, instructions, and materials provided by or on behalf of Customer or any Authorized User in connection with the Services; (c) Customer Systems; (d) the security and use of Access Credentials of Customer and its Authorized Users; and (e) all access to and use of the Services and SHAED Materials directly or indirectly by or through the Customer Systems or its or its Authorized Users' Access Credentials, with or without Customer's knowledge or consent.

5.8 Access and Security. Customer shall employ all physical, administrative, and technical controls, screening, and security procedures and other safeguards necessary to: (a)

securely administer the distribution and use of all Access Credentials and protect against any unauthorized access to, or use of, the Services; and (b) control the content and use of Customer Data, including the uploading or other provision of Customer Data for Processing by the Services.

6. FEES AND PAYMENT

6.1 Fees. Customer shall pay the Fees set forth in the Order Form in accordance with the payment terms specified therein. The Fees may include: (a) Subscription Fees for access to the Platform and Modules; (b) Access Fees payable per Authorized User or Representative; (c) Transaction Fees or Referral Fees based on sales through the Platform; (d) Broker Fees for financing arrangements; (e) Implementation or Onboarding Fees; and (f) such other fees as specified in the Order Form.

6.2 Payment Terms. Except as otherwise specified in the Order Form, all Fees are due within fifteen (15) days of the date of invoice. Access Fees will be invoiced by SHAED on a monthly basis and on the first calendar day of each month, in advance, commencing with the Effective Date and lasting for the duration of the Term. Other Fees will be invoiced by SHAED in arrears, following delivery of the services for which such Fees are charged. Customer shall make all payments hereunder in U.S. dollars by wire transfer, ACH or other electronic funds transfer method to the account specified in the Order Form.

6.3 Taxes. All Fees are exclusive of taxes. Customer shall be solely responsible for any taxes payable to, or assessments made by, any governmental or taxing authority in connection with Customer's use of or access to the Services. If SHAED has the legal obligation to pay or collect any taxes for which Customer is responsible, SHAED will invoice Customer and Customer will pay that amount unless Customer provides a valid tax exemption certificate authorized by the appropriate taxing authority.

6.4 Late Payment. If any Fees are not paid when due then, in addition to all other remedies that may be available: (a) SHAED may charge interest on the past due amount at the rate of eighteen percent (18%) per annum or the maximum rate permitted by applicable law, whichever is less; (b) Customer shall reimburse SHAED for all reasonable costs incurred by SHAED in collecting any late payments or interest, including legal fees, court costs, and collection agency fees; and (c) if such failure continues for ten (10) days following written notice thereof, SHAED may suspend performance of the Services until all past due amounts and interest thereon have been paid, without incurring any obligation or liability to Customer or any other Person by reason of such suspension.

6.5 Fee Increases. SHAED may increase Fees no more than once annually for any calendar year after the first calendar year of the Initial Term, including any calendar year of any Renewal Term, by providing written notice to Customer at least sixty (60) calendar days before the commencement of that calendar year.

6.6 Reimbursable Expenses. Customer shall reimburse SHAED for out-of-pocket expenses incurred by SHAED in connection with performing the Services as set forth in the Order Form (the "Reimbursable Expenses").

6.7 No Deductions or Set-Offs. All amounts payable to SHAED under this Agreement shall be paid by Customer to SHAED in full without any set-off, recoupment, counterclaim, deduction, debit, or withholding for any reason (other than any deduction or withholding of Tax as may be required by applicable Law).

6.8 Non-Refundable Fees. All Fees and other amounts paid by Customer are non-refundable (including if the Agreement is terminated before the end of the then-current

Term), except as expressly provided otherwise in this Agreement. Service levels, package tiers, and Authorized User counts cannot be decreased during the then-current Term.

7. TERM AND TERMINATION

7.1 Term. The term of this Agreement will commence when the Agreement has been entered into by Customer and accepted by SHAED, and will continue until all subscriptions hereunder have expired or been terminated. The term of each subscription for a service or product shall be as specified in the applicable Order Form.

7.2 Renewal. Except as otherwise specified in the Order Form, the Services will automatically renew for additional periods equal to the expiring term, unless either Party gives the other Party notice of non-renewal or termination at least the number of days specified in the Order Form (or if not specified, thirty (30) days) before the end of the then current term.

7.3 Termination for Cause. Either Party may, by written notice to the other Party, terminate the Agreement, in whole or in part, if the other Party:

- (a) breaches the Agreement in a way that is incapable of cure or, with respect to a breach capable of cure, the other Party does not cure the breach within thirty (30) days of receiving written notice of that breach;
- (b) fails to pay any amount when due hereunder, and such failure continues more than ten (10) days after delivery of written notice thereof;
- (c) becomes insolvent or admits its inability to pay its debts generally as they become due or becomes subject, voluntarily or involuntarily, to any proceeding under any domestic or foreign bankruptcy or insolvency law, which is not fully stayed within thirty (30) Business Days or is not dismissed or vacated within six (6) months after filing or makes a general assignment for the benefit of creditors; or
- (d) is dissolved or liquidated or takes any corporate action for such purpose or has a receiver, trustee, custodian or similar agent appointed by order of any court of competent jurisdiction to take charge of or sell any material portion of its property or business.

7.4 Termination by SHAED. In addition to its rights under other sections of the Agreement, SHAED may also immediately terminate or suspend the Services, or Customer's access to the Platform and other services of SHAED, remove Customer's listings, and/or terminate the Agreement at any time in its reasonable discretion if Customer violates the terms of the Agreement or any Platform policies.

7.5 Effect of Termination. Upon any expiration or termination of this Agreement, except as expressly otherwise provided in this Agreement:

- (a) all rights, licenses, consents, and authorizations granted by SHAED to the Customer will immediately terminate;
- (b) SHAED shall immediately cease all use of any Customer Data or Customer's Confidential Information and: (i) promptly return to Customer, or at Customer's written request destroy, all documents and tangible materials containing, reflecting, incorporating, or based on Customer Data or Customer's Confidential Information; and (ii) permanently erase all Customer Data and Customer's Confidential Information from the SHAED Systems, provided that SHAED's obligations under this clause do not apply to any Resultant Data, and SHAED may retain Customer Data in its backups, archives,

and disaster recovery systems until such Customer Data is deleted in the ordinary course, and to the extent required by applicable Law;

(c) Customer shall immediately cease all use of any SHAED Materials and Confidential Information and: (i) promptly return to SHAED, or at SHAED's written request, destroy all documents and tangible materials containing, reflecting, incorporating, or based on any SHAED Materials or SHAED's Confidential Information; and (ii) permanently erase all SHAED Materials and SHAED's Confidential Information from all computer systems that Customer directly or indirectly controls; and (iii) certify to SHAED in a certificate of a senior officer of Customer that it has complied with the requirements of this Section;

(d) Customer shall pay all Fees and expenses accrued prior to termination. If SHAED terminates this Agreement pursuant to Section 7.3(a) or 7.3(b) due to Customer's breach or non-payment, all Fees that would have become payable had the Agreement remained in effect until expiration of the then-current Term will become immediately due and payable;

(e) Data Export. Upon Customer's written request made at least five (5) days before the effective date of termination or expiration, SHAED shall deliver to Customer the then most recent version of Customer Data maintained by SHAED in a commonly used electronic format, provided that Customer has paid all Fees then due and owing. Customer shall reimburse SHAED for reasonable costs and expenses incurred in connection with such data transfer on a time and materials basis. SHAED shall complete such delivery within thirty (30) days of the effective date of termination or expiration.

7.6 Survival. Sections 2, 4, 5, 7.5, 7.6, 8, 9, 10, 11, 12, 13 and Schedule A of these Terms and Conditions shall survive the expiration or termination of the Agreement for any reason.

8. REPRESENTATIONS AND WARRANTIES

8.1 Mutual Representations and Warranties. Each Party represents, warrants and covenants to the other Party that:

- (a) it is organized and validly existing in the jurisdiction of its formation;
- (b) it has the legal power and capacity to enter into and perform its obligations and grant the rights, licenses and authorizations it grants and is required to grant under this Agreement;
- (c) the execution of this Agreement by its representative has been duly authorized by all necessary corporate action;
- (d) when executed and delivered by the Parties, this Agreement will constitute its legal, valid and binding obligation, enforceable in accordance with its terms; and
- (e) it and its employees, officers and representatives are fully authorized and permitted to engage in the business relationship contemplated in the Agreement.

8.2 Customer Representations and Warranties. Customer represents, warrants and covenants to SHAED that:

- (a) Customer's services, products, or Customer Data, and providing any Customer Data or rights to Customer Data to SHAED pursuant to the Agreement, do not and will not violate or infringe any third-party rights or agreements applicable to Customer or to which Customer is a party or personal rights or require consent of any third party under any agreement or instrument to which Customer is a party or by which Customer is bound;

(b) Customer will have the consent of the owner of each logo, brand, trademark, trade name, trade dress or other indicia of intellectual property that it will upload to the Platform;

(c) Customer will have the informed consent of each person in respect of whom Customer collects, uses and discloses personally identifiable information to such collection, use and disclosure and will not use the Platform in a manner that is contrary to such consent or contrary to the purpose for which the information was collected;

(d) any information set forth in Listings, including, but not limited to, Customer Data, is true and correct and that such listing contains the necessary information and disclosures to comply with applicable law and regulations;

(e) Customer has implemented adequate administrative, procedural, technical, and physical safeguards designed to (i) provide for the security and confidentiality of NPI provided, collected, and/or received in connection with the Agreement, (ii) protect against any anticipated threats or hazards to the security or integrity of NPI, and (iii) protect against unauthorized access to or use of NPI which could result in substantial harm to a Party's customers;

(f) Customer is knowledgeable of, and familiar with, all applicable Privacy Laws and will implement a privacy policy which will comply with all Privacy Laws, fully and accurately disclose the data collection, use and disclosure practices in connection with the use of the Service, and be clearly and conspicuously available to all users. Customer will, at all times, comply with its obligations described in its privacy policy. SHAED will have no responsibility for Customer's compliance with Privacy Laws;

(g) Customer owns or otherwise has, and will have, the necessary rights and consents in and relating to the Customer Data so that, as received by SHAED and Processed in accordance with this Agreement, they do not and will not infringe, misappropriate, or otherwise violate any IP Rights or any privacy or other rights of any third party or violate any applicable Law; and

(h) any Ads provided by Customer do not and will not violate or infringe any third party rights, and the use, reproduction, distribution, transmission or display of the Ads will not (i) violate any criminal laws or any rights of any third parties; or (ii) contain any material that is unlawful or otherwise objectionable, including without limitation any material that encourages conduct that would constitute a criminal offense, give rise to civil liability, or otherwise violate any applicable law.

8.3 SHAED Representations and Warranties. SHAED represents, warrants and covenants to Customer that:

(a) it has title to the Platform and has the full power and authority to grant the rights of use herein granted to Customer;

(b) it will perform the Services using personnel of required skill, experience, and qualifications and in a professional and workmanlike manner in accordance with generally recognized industry standards for similar services and will devote adequate resources to meet its obligations under this Agreement.

9. DISCLAIMER OF WARRANTIES

EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, THE PLATFORM AND THE SERVICES ARE PROVIDED ON AN "AS IS" BASIS. NEITHER SHAED NOR ITS AFFILIATES MAKE ANY REPRESENTATIONS OR WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION: (A) THE IMPLIED WARRANTIES OF

MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE OR NONINFRINGEMENT; (B) THAT THE PLATFORM OR THE SERVICES WILL MEET CUSTOMER'S REQUIREMENTS, WILL ALWAYS BE AVAILABLE, ACCESSIBLE, UNINTERRUPTED, TIMELY, SECURE, OR OPERATE WITHOUT ERROR; AND (C) ANY IMPLIED WARRANTY ARISING FROM COURSE OF DEALING OR USAGE OF TRADE. TO THE FULL EXTENT PERMISSIBLE UNDER APPLICABLE LAW, SHAED AND ITS AFFILIATES DISCLAIM ANY AND ALL SUCH WARRANTIES.

ALL THIRD-PARTY MATERIALS ARE PROVIDED "AS IS" AND ANY REPRESENTATION OR WARRANTY OF OR CONCERNING ANY THIRD-PARTY MATERIALS IS STRICTLY BETWEEN CUSTOMER AND THE THIRD-PARTY OWNER OR DISTRIBUTOR OF THE THIRD-PARTY MATERIALS.

WITHOUT LIMITING THE FOREGOING, SHAED MAKES NO WARRANTY OF ANY KIND THAT THE SERVICES OR SHAED MATERIALS, OR ANY PRODUCTS OR RESULTS OF THE USE THEREOF, WILL (A) MEET CUSTOMER'S OR ANY OTHER PERSON'S REQUIREMENTS; (B) OPERATE WITHOUT INTERRUPTION; (C) ACHIEVE ANY INTENDED RESULT; (D) BE COMPATIBLE OR WORK WITH ANY SOFTWARE, SYSTEM, OR OTHER SERVICES EXCEPT IF AND TO THE EXTENT EXPRESSLY SET FORTH IN THE SPECIFICATIONS; OR (E) BE SECURE, ACCURATE, COMPLETE, FREE OF HARMFUL CODE, OR ERROR FREE.

SHAED SHALL NOT BE RESPONSIBLE FOR ANY INABILITY TO PROVIDE THE SERVICES WHICH RESULTS FROM (I) THE INABILITY OF SHAED TO ACCESS CUSTOMER DATA; OR (II) CUSTOMER REQUESTED INFORMATION NOT BEING PRESENT IN THE CUSTOMER'S DMS OR BODY MANUFACTURER'S DATA.

10. LIMITATION OF LIABILITY

10.1 Exclusion of Damages. EXCEPT AS OTHERWISE PROVIDED IN SECTION 10.7, OTHER THAN A FAILURE TO COMPLY WITH THE CONFIDENTIALITY OBLIGATIONS PROVIDED FOR IN SECTION 12, OR THE REPRESENTATIONS ON LISTINGS AND ON ADS CONTAINED HEREIN, NEITHER PARTY SHALL HAVE ANY LIABILITY UNDER OR IN CONNECTION WITH THIS AGREEMENT OR ITS SUBJECT MATTER UNDER ANY LEGAL OR EQUITABLE THEORY, INCLUDING BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, AND OTHERWISE, FOR ANY: (A) LOSS OF PRODUCTION, USE, BUSINESS, REVENUE, OR PROFIT OR DIMINUTION IN VALUE; (B) IMPAIRMENT, INABILITY TO USE, OR LOSS, INTERRUPTION, OR DELAY OF THE SERVICES; (C) LOSS, DAMAGE, CORRUPTION, OR RECOVERY OF DATA; (D) BREACH OF DATA OR SYSTEM SECURITY; OR (E) CONSEQUENTIAL, INCIDENTAL, INDIRECT, SPECIAL, AGGRAVATED, PUNITIVE, OR EXEMPLARY DAMAGES, OR FOR COST OF COVER, RECOVERY OR RECOUPMENT OF ANY INVESTMENT, EACH OF WHICH IS HEREBY EXCLUDED BY AGREEMENT OF THE PARTIES REGARDLESS OF WHETHER SUCH PERSONS WERE ADVISED OF THE POSSIBILITY OF SUCH LOSSES OR DAMAGES OR SUCH LOSSES OR DAMAGES WERE OTHERWISE FORESEEABLE, AND NOTWITHSTANDING THE FAILURE OF ANY AGREED OR OTHER REMEDY OF ITS ESSENTIAL PURPOSE.

10.2 Monetary Cap. EXCEPT AS OTHERWISE PROVIDED IN SECTION 10.7, IN NO EVENT SHALL EITHER PARTY'S OR ITS AFFILIATES' AGGREGATE LIABILITY TO THE OTHER PARTY OR ANY THIRD PARTY FOR ANY CLAIMS, COSTS, LOSSES, DAMAGES OF ANY KIND, JUDGMENTS, FINES, PENALTIES, INTEREST, AND EXPENSES (INCLUDING ATTORNEYS' FEES AND COSTS OF ANY INVESTIGATION, DEFENSE, AND SETTLEMENT) FOR ANY REASON WHATSOEVER, AND

REGARDLESS OF THE FORM OF ACTION OR LEGAL THEORY, EXCEED THE FEES PAID BY CUSTOMER TO SHAED PURSUANT TO THIS AGREEMENT DURING THE TWELVE (12) MONTH PERIOD IMMEDIATELY PRIOR TO THE EVENT CREATING THE LIABILITY. THE LIMITATIONS OF LIABILITY PROVIDED FOR HEREIN REFLECT THE ALLOCATION OF RISK BETWEEN THE PARTIES.

10.3 Survival of Limitations. THE LIMITATIONS SPECIFIED IN THIS SECTION 10 WILL SURVIVE AND APPLY EVEN IF ANY REMEDY SPECIFIED IN THIS AGREEMENT IS FOUND TO HAVE FAILED OF ITS ESSENTIAL PURPOSE.

10.4 Allocation of Risk. The limitations of liability provided for herein reflect the allocation of risk between the Parties.

10.5 Exceptions to Liability Cap. Notwithstanding anything to the contrary herein, in no event may SHAED be held liable for any claims resulting from:

- (a) the unavailability of the Platform due to facts and circumstances related to Customer, any other User, or any other person for whom Customer is at law responsible or the unavailability of suitable network infrastructure or internet connections of Customer or any User;
- (b) inaccessibility of the Platform during weekends and public holidays, as well as evening hours due to maintenance of the Platform;
- (c) Customer's unauthorized use of the Platform;
- (d) Customer's or any Third Party's modification of the Platform; or
- (e) Customer's use of the Platform in combination with any products and/or services that have not been approved by SHAED.

10.6 Time Limitation. Neither Party may bring any action or claim hereunder more than one (1) year after the cause of action has accrued.

10.7 Exceptions. The exclusions and limitations in Sections 10.1 and 10.2 do not apply to either Party's obligations under Section 11 (Indemnification) or liability for either Party's gross negligence or willful misconduct.

11. INDEMNIFICATION

11.1 Indemnification by Customer. Customer shall indemnify, defend and hold harmless SHAED and its officers, directors, associates, members, partners, employees, agents, affiliates, successors, and assigns from and against any and all claims, costs, losses, damages (including any indirect, special incidental, or consequential damages), judgments, fines, penalties, interest, costs, and expenses (including reasonable attorneys' fees and costs of any investigation, defense, and settlement) arising out of any Claims that arise out of or relate to:

- (a) any breach of any of Customer's representations, warranties, or obligations set forth in this Agreement;
- (b) any breach of Customer's representations or warranties relating to the Products;
- (c) incorrect production or customization results arising from incorrect Product Content;
- (d) any defective Products or product liability of any kind;
- (e) the Products, any Product Content, or the advertisement, offer, sale or return of any Products;

- (f) any actual or alleged infringement of any IP Rights by Customer, the Products, or any Product Content;
- (g) any taxes owed by Customer, or the collection, payment or failure to collect or pay such taxes;
- (h) any warranty provided by Customer to any buyer or user of Customer's Products;
- (i) Customer's recklessness, willful misconduct, or violation of Laws;
- (j) any activities conducted by Customer;
- (k) Customer's alleged or actual use of, misuse of, or failure in the use of the Platform;
- (l) Customer's failure to comply with Privacy Laws;
- (m) any Claim based on Listings or Ads; or
- (n) Customer Data, including any Processing of Customer Data by or on behalf of SHAED in accordance with this Agreement,

provided that SHAED shall give written notice of the Claim to Customer, give Customer sole control of the defense and settlement of the claim, and provide to Customer at Customer's sole cost and expense, all reasonable assistance, cooperation, documentation and information reasonably requested in connection with the Claim.

11.2 Indemnification by SHAED. SHAED shall indemnify, defend and hold harmless Customer and its officers, directors, employees, agents, and affiliates from and against any and all claims, costs, losses, damages (including any indirect, special incidental, or consequential damages), judgments, fines, penalties, interest, costs, and expenses (including reasonable attorneys' fees and costs of any investigation, defense, and settlement) arising out of any Claims that arise out of or relate to:

- (a) any Claim of a Third Party alleging that the Platform (not including any Product Content or Customer Data) infringes any United States copyright, trademark, or patent of a Third Party in effect as of the Effective Date (a "Third Party IP Infringement Claim"); or
- (b) SHAED's recklessness, willful misconduct, or violation of Laws,

provided that Customer shall (a) promptly give written notice of the Claim to SHAED; (b) give SHAED sole control of the defense and settlement of the claim; and (c) provide to SHAED at SHAED's sole cost and expense, all reasonable assistance, cooperation, documentation and information reasonably requested in connection with any Claim.

11.3 Exclusions from SHAED Indemnification. The foregoing indemnification obligation of SHAED does not apply to any Claim or Losses arising out of or relating to any:

- (a) access to, or use of, the Services or SHAED Materials in combination with any hardware, system, software, network, or other materials or service not provided or authorized in the Specifications or otherwise in writing by SHAED;
- (b) modification of the Services or SHAED Materials other than by or on behalf of SHAED or with SHAED's written approval in accordance with SHAED's written specification; or
- (c) failure to timely implement any modifications, upgrades, replacements, or enhancements required by SHAED for access to the Services.

11.4 Mitigation. In addition and without limiting Section 11.2, should the Platform or any part thereof become or, in SHAED's opinion, acting reasonably, likely to become, the subject of any Third Party IP Infringement Claim, SHAED may at its option, either:

- (a) procure for Customer the right to continue to use the Platform;
- (b) replace the same with non-infringing components or modify the Platform so that it becomes non-infringing, while providing substantially equivalent features and functionality; or
- (c) if SHAED determines that neither of the foregoing options is commercially feasible, SHAED may terminate this Agreement on a no-fault basis and require that the use of the Platform be terminated and refund to Customer all unearned Fees actually paid by Customer to SHAED.

THIS SECTION 11 SETS FORTH CUSTOMER'S SOLE REMEDIES AND SHAED'S SOLE LIABILITY AND OBLIGATION FOR ANY ACTUAL, THREATENED, OR ALLEGED CLAIMS THAT THIS AGREEMENT OR ANY SUBJECT MATTER HEREOF (INCLUDING THE SERVICES AND SHAED MATERIALS) INFRINGES, MISAPPROPRIATES, OR OTHERWISE VIOLATES ANY THIRD-PARTY IP RIGHT.

11.5 Indemnification Procedure. Each Party shall promptly notify the other Party in writing of any Claim for which such Party believes it is entitled to be indemnified. The Party seeking indemnification (the "Indemnitee") shall cooperate with the other Party (the "Indemnitor") at the Indemnitor's sole cost and expense. The Indemnitor shall immediately take control of the defense and investigation of such Claim and shall employ counsel reasonably acceptable to the Indemnitee to handle and defend the same, at the Indemnitor's sole cost and expense. The Indemnitee's failure to perform any obligations under this Section will not relieve the Indemnitor of its obligations except to the extent that the Indemnitor can demonstrate that it has been materially prejudiced as a result of such failure. The Indemnitee may participate in and observe the proceedings at its own cost and expense with counsel of its own choosing.

12. CONFIDENTIALITY

12.1 Confidential Information. In connection with this Agreement each Party (as the "Disclosing Party") may disclose or make available Confidential Information to the other Party (as the "Receiving Party"). "Confidential Information" means any confidential, proprietary or trade secret information of a party, whether oral or written, of a private, secret, proprietary or confidential nature, concerning either party or its business operations, including information consisting of, or relating to, the Disclosing Party's technology, trade secrets, know-how, business operations, plans, strategies, customers, suppliers, business methods, employment strategies, and pricing and information with respect to which the Disclosing Party has contractual or other confidentiality obligations, in each case whether or not marked, designated, or otherwise identified as "confidential". Without limiting the foregoing, all SHAED Materials are the Confidential Information of SHAED and the terms and existence of this Agreement are the Confidential Information of SHAED. Both parties agree that the terms, pricing and specific information concerning the SHAED services are Confidential Information of SHAED.

12.2 Exclusions. Confidential Information does not include information that the Receiving Party can demonstrate by written or other documentary records:

- (a) was rightfully known to the Receiving Party without restriction on use or disclosure before such information's being disclosed or made available to the Receiving Party in connection with this Agreement;
- (b) was or becomes generally known by the public other than by non-compliance with this Agreement by the Receiving Party or any of its Representatives;

(c) was or is received by the Receiving Party on a non-confidential basis from a third party that was not or is not, at the time of such receipt, under any obligation to maintain its confidentiality;

(d) was or is independently developed by the Receiving Party without reference to or use of any Confidential Information; or

(e) is any information about a vehicle, including but not limited to, configuration, model, pricing and other information contained in the Customer Data.

12.3 Protection of Confidential Information. As a condition to being provided with any disclosure of or access to Confidential Information, the Receiving Party shall:

(a) not access or use Confidential Information other than as necessary to exercise its rights or perform its obligations under and in accordance with this Agreement;

(b) not disclose or permit access to Confidential Information other than to its Representatives who: (i) need to know such Confidential Information for purposes of the Receiving Party's exercise of its rights or performance of its obligations under this Agreement; (ii) have been informed of the confidential nature of the Confidential Information and the Receiving Party's obligations under this Section 12; and (iii) are bound by confidentiality and restricted use obligations at least as protective of the Confidential Information as the terms set forth herein;

(c) safeguard the Confidential Information from unauthorized use, access, or disclosure using at least the degree of care it uses to protect its own sensitive information and in no event less than a reasonable degree of care; and

(d) ensure its Representatives' compliance with, and be responsible and liable for, any of its Representatives' non-compliance with, the terms of this Section 12.

Each party agrees to use the Confidential Information of the other party only for purposes permitted by this Agreement. All Confidential Information remains the property of the party disclosing the information and no license or other rights to Confidential Information is granted or implied, except as provided for herein.

12.4 NPI Safeguards. Each Party represents, warrants, and covenants that it has implemented adequate administrative, procedural, technical, and physical safeguards designed to (i) provide for the security and confidentiality of NPI provided, collected, and/or received in connection with the Agreement, (ii) protect against any anticipated threats or hazards to the security or integrity of NPI, and (iii) protect against unauthorized access to or use of NPI which could result in substantial harm to a Party's customers. In addition, each Party will notify customers of security breaches as required by applicable law.

12.5 Compelled Disclosures. If the Receiving Party or any of its Representatives is compelled by applicable Law to disclose any Confidential Information, then, to the extent permitted by applicable Law, the Receiving Party shall: (a) promptly, and before such disclosure, notify the Disclosing Party in writing of such requirement so that the Disclosing Party can seek a protective order or other remedy or waive its rights; and (b) provide reasonable assistance to the Disclosing Party, at the Disclosing Party's sole cost and expense, in opposing such disclosure or seeking a protective order or other limitations on disclosure. If the Disclosing Party waives compliance or, after providing the notice and assistance required, the Receiving Party remains required by Law to disclose any Confidential Information, the Receiving Party shall disclose only that portion of the Confidential Information that the Receiving Party is legally required to disclose and, at the Disclosing Party's request, shall use commercially reasonable efforts to obtain assurances

from the applicable court or other presiding authority that such Confidential Information will be afforded confidential treatment.

12.6 Survival. The Parties' obligations under this Section 12 shall survive any termination or expiration of the Agreement.

13. GENERAL PROVISIONS

13.1 Integrated Agreement. This Agreement (including the Order Form and any written guidelines or policies posted from time to time by SHAED on the Platform) constitutes the complete integrated agreement between the Parties concerning the subject matter of this Agreement. All prior and contemporaneous agreements, understandings, negotiations or representations, whether oral or in writing, relating to the subject matter of this Agreement, are superseded in their entirety by this Agreement. To the extent Customer is already a party to an agreement with SHAED regarding Customer's participation in the Platform, the terms and conditions of that agreement are hereby terminated and replaced in their entirety with the terms and conditions of this Agreement but Customer will continue to comply with all Customer's surviving obligations under the prior agreement.

13.2 Relationship of the Parties. The relationship between the Parties is that of independent contractors. Nothing contained in this Agreement shall be construed as creating any agency, partnership, joint venture, or other form of joint enterprise, employment, or fiduciary relationship between the Parties, and neither Party shall have authority to contract for or bind the other Party in any manner whatsoever.

13.3 Notices. All notices are to be sent to the addresses of the Parties in the Order Form. Notices shall be deemed effectively given: (a) when received, if delivered by hand, with signed confirmation of receipt; (b) when received, if sent by a nationally recognized overnight courier, signature required; (c) when sent, if by facsimile or email (in each case, with confirmation of transmission), if sent during the addressee's normal business hours or on the next Business Day, if sent after the addressee's normal business hours; and (d) on the fifth day after the date mailed by certified or registered mail, return receipt requested, postage prepaid.

13.4 Governing Law. This Agreement is governed by and construed in accordance with the internal Laws of the State of Iowa without giving effect to any choice or conflict of law provision or rule that would require or permit the application of the Laws of any jurisdiction other than those of the State of Iowa.

13.5 Choice of Forum. Any legal suit, action, or proceeding arising out of or related to this Agreement or the licenses granted hereunder will be instituted exclusively in the federal courts of the United States or the courts of the State of Iowa, and each Party irrevocably submits to the exclusive jurisdiction of such courts in any such suit, action, or proceeding. Service of process, summons, notice, or other document by mail to such Party's address set forth herein will be effective service of process for any suit, action, or other proceeding brought in any such court. The Parties irrevocably and unconditionally waive any objection to the venue of any action or proceeding in such courts and irrevocably waive and agree not to plead or claim in any such court that any such action or proceeding brought in any such court has been brought in an inconvenient forum.

13.6 Assignment. Customer shall not assign or otherwise transfer any of its rights, or delegate or otherwise transfer any of its obligations or performance, under this Agreement, in each case whether voluntarily, involuntarily, by operation of law, or otherwise, without SHAED's prior written consent, which consent SHAED shall not unreasonably withhold or delay, provided that the assignee or transferee agrees in a writing satisfactory to SHAED to

assume and be bound by the provisions of this Agreement. Any purported assignment, delegation, or transfer in violation of this Section is void. SHAED may assign this Agreement and its rights hereunder without the consent of Customer, including in connection with any merger, acquisition, corporate reorganization, sale of assets, or similar transaction to which SHAED or its affiliates is a party. This Agreement is binding upon and inures to the benefit of the Parties hereto and their respective permitted successors and assigns.

13.7 Amendment and Modification. Except as provided in Section 1.9, amendments and waivers relating to this Agreement must be in writing and signed by both Parties. No failure to exercise, or delay in exercising, any rights, remedy, power, or privilege arising from this Agreement will operate or be construed as a waiver thereof; nor will any single or partial exercise of any right, remedy, power, or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege.

13.8 Severability. If any provision of this Agreement is invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability will not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction. Upon such determination that any term or other provision is invalid, illegal, or unenforceable, the Parties hereto shall negotiate in good faith to modify this Agreement so as to effect the original intent of the Parties as closely as possible in a mutually acceptable manner so that the transactions contemplated hereby be consummated as originally contemplated to the greatest extent possible.

13.9 Waiver of Jury Trial. Each Party irrevocably and unconditionally waives any right it may have to a trial by jury in respect of any legal action arising out of or relating to the Agreement or the transactions contemplated hereby.

13.10 Equitable Relief. Each Party acknowledges and agrees that a breach or threatened breach by such Party of any of its obligations under Section 12 (Confidentiality) or, in the case of Customer, Section 2.1 (Use Restrictions), would cause the other Party irreparable harm for which monetary damages would not be an adequate remedy and agrees that, in the event of such breach or threatened breach, the non-breaching Party will be entitled to seek equitable relief, including a restraining order, an injunction, specific performance, and any other relief that may be available from any court, without any requirement to post a bond or other security, or to prove actual damages or that monetary damages are not an adequate remedy. Such remedies are not exclusive and are in addition to all other remedies that may be available at law, in equity or otherwise. Any breach or threatened breach by or on behalf of a Party or its affiliates or agents will likely result in irreparable injury to the other Party, and each Party agrees (i) to take all reasonable measures, including court proceedings, at its own expense to restrain its and its affiliates' directors, officers, employees, professional consultants, and representatives from any such breach or threatened breach; and (ii) that the other Party shall be entitled to apply for temporary and permanent injunctions restraining such breach or threatened breach without posting a bond.

13.11 Force Majeure. In no event will either Party be liable or responsible to the other Party, or be deemed to have defaulted under or breached this Agreement, for any failure or delay in fulfilling or performing any term of this Agreement when and to the extent such failure or delay is caused by or results from acts beyond SHAED's reasonable control, including, without limitation: (a) acts of God; (b) flood, fire, earthquake, tsunami, or explosion; (c) epidemics or pandemics; (d) war, terrorism, invasion, riot, or other civil unrest; (e) embargoes or blockades; (f) national or regional emergency; (g) telecommunication outages; (h) strikes, labor stoppages or slowdowns, or other industrial disturbances; (i) passage of Law or any action taken by a governmental or public authority; (j) national or regional shortage of adequate power or telecommunications or transportation facilities; or (k)

any other event that is beyond the reasonable control of the affected Party (each, a "Force Majeure Event"). The non-affected Party may terminate this Agreement if such Force Majeure Event resulting in delay continues for a period of ninety (90) days or more.

13.12 Interpretation. For purposes of this Agreement, (a) the words "include," "includes," and "including" are deemed to be followed by the words "without limitation"; (b) the word "or" is not exclusive; (c) the words "herein," "hereof," "hereby," "hereto," and "hereunder" refer to this Agreement as a whole. The Parties intend this Agreement to be construed without regard to any presumption or rule requiring construction or interpretation against the Party drafting an instrument or causing any instrument to be drafted. The exhibits, schedules, attachments, and appendices referred to herein are an integral part of this Agreement to the same extent as if they were set forth verbatim herein.

13.13 Paramountcy. If there is any inconsistency between the statements made in the body of these Terms and Conditions, the related exhibits, attachments, appendices and any other documents incorporated herein by reference, the following order of precedence governs: (a) first, any Statement of Work or Implementation Schedule; (b) second, the Order Form; (c) third, these Terms and Conditions; (d) fourth, any exhibits, attachments, and appendices to the Order Form; and (e) fifth, any other documents incorporated herein by reference.

13.14 Counterparts. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which together are deemed to be one and the same agreement. A signed copy of this Agreement delivered by facsimile, email, or other means of electronic transmission is deemed to have the same legal effect as delivery of an original signed copy of this Agreement.

13.15 Headings. The headings in this Agreement are for reference only and do not affect the interpretation of this Agreement.

13.16 Third-Party Rights. Nothing contained in this Agreement is intended to confer upon any third party any rights, benefits, or remedies of any kind or character whatsoever under or by reason of this Agreement.

13.17 Audits. SHAED or its nominee (including its accountants and auditors) may, on ten (10) days' written notice, inspect and audit Customer's use of the Services under this Agreement at any time during the Term and for two (2) years following the termination or earlier expiration of this Agreement. All audits will be conducted during regular business hours and no more frequently than once in any twelve-month period, and in a manner that does not unreasonably interfere with Customer's business operations. Customer shall make available all such books, records, equipment, information, and personnel, and provide all such cooperation and assistance, as may reasonably be requested by or on behalf of SHAED with respect to such audit. SHAED shall only examine information directly related to Customer's use of the Services. If the audit determines that Customer's use of the Services exceeded the usage permitted by this Agreement by more than five percent (5%), Customer shall pay to SHAED all amounts due for such excess use, plus interest on such amounts as provided in Section 6.4.

SCHEDULE A

DEFINITIONS

Capitalized terms used in these Terms and Conditions shall have the following meanings:

"Access Credentials" means any user name, identification number, password, license or security key, security token, PIN, or other security code, method, technology, or device used, alone or in combination, to verify an individual's identity and authorization to access and use the Services.

"Ads" means the advertisements provided by Customer for display on the Platform.

"Affiliate" of a Person means any other Person that, directly or indirectly, through one or more intermediaries, Controls, is Controlled by, or is under common Control with, the first Person.

"Authorized User" means Customer's employees, consultants, contractors, agents, customers and clients who are authorized by Customer to access and use the Services under the rights granted to Customer pursuant to this Agreement and for whom access to the Services has been purchased pursuant to this Agreement. The number of Authorized Users is limited as set out in the Order Form.

"Backup Policy" has the meaning set forth in Section 5.5.

"Broker Fee" means any fee payable to SHAED based on financing arrangements facilitated through the Platform, as specified in the Order Form.

"Business Day" means any day except Saturday, Sunday, or any day on which banks are authorized or required to close in the State of Iowa.

"Claim" means any action, allegation, claim, demand, lawsuit, legal proceeding, administrative or other proceedings or litigation, inquiry, audit, or investigation.

"Confidential Information" has the meaning set forth in Section 12.1.

"Control" (and the terms "Controlled by" and "under common Control with") means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a Person, whether through the ownership of voting securities, by contract, or otherwise.

"Customer Content" means all content and materials provided or made accessible by Customer to SHAED, including links, banner ads, logos, trademarks, names, branding, videos, vehicle and vehicle inventory descriptions and data (including, without limitation, make, model, mileage, features, condition and pricing information), text, photographs, images, data management system ("DMS") information, contact information, and Customer websites.

"Customer Data" means all data, information and materials owned or provided by Customer to SHAED in connection with the Order Form, the Services and the Agreement, including, without limitation, DMS data, inventory and photo feeds, body invoices from Customer's suppliers, other materials and information provided by Customer as part of the onboarding and integration process, and all electronically stored data and hard copy originals. For the avoidance of doubt, Customer Data does not include Resultant Data or any other information reflecting the access or use of the Services by or on behalf of Customer or any Authorized User.

"Customer Failure" has the meaning set forth in Section 2.6.

"Customer Systems" means Customer's or its Authorized Users' information technology infrastructure, including computers, software, hardware, databases, electronic systems (including database management systems), and networks, whether operated directly by Customer or any Authorized User or through the use of third-party services.

"Documentation" means any user guides, technical manuals, specifications, and other documentation provided by SHAED to Customer regarding the Platform and Services.

"Effective Date" means the date that Customer and SHAED have entered into this Agreement.

"Enhanced Data" means any data made available by SHAED that has been processed, aggregated, created, developed, analyzed or modified by SHAED.

"Fees" refers to the amounts, expressed in United States dollars, payable to SHAED by Customer, as set out in the Order Form.

"Force Majeure Event" has the meaning set forth in Section 13.11.

"Harmful Code" means any software, hardware, or other technology, device, or means, including any virus, trojan horse, worm, backdoor, malware, or other malicious computer code, the purpose or effect of which is to permit unauthorized access to, or to destroy, disrupt, disable, distort, or otherwise harm or impede in any manner any computer, software, firmware, hardware, system, or network, or prevent Customer or any Authorized User from accessing or using the Services as intended by this Agreement. Harmful Code does not include any SHAED Disabling Device.

"Indemnitee" has the meaning set forth in Section 11.5.

"Indemnitor" has the meaning set forth in Section 11.5.

"Initial Term" means the initial term of this Agreement as specified in the Order Form.

"IP Rights" means any and all registered and unregistered rights granted, applied for or otherwise now or hereafter in existence under or related to any patent, copyright, trademark, trade secret, database protection, or other intellectual property rights Laws, and all similar or equivalent rights or forms of protection, in any part of the world.

"Law" means any statute, ordinance, regulation, rule, code, constitution, treaty, common law, governmental order, or other requirement or rule of law of any governmental authority.

"Listings" means the information set forth in listings that Customer requests SHAED to make public in connection with the Services.

"Losses" means all losses, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs, or expenses of whatever kind, including reasonable legal fees, disbursements, and charges.

"Module" means each functional component of the Platform, including the Shop Module, Track Module, and Document Module, as described in the Order Form.

"NPI" means non-public personal information.

"Order" means a purchase order or other transaction initiated through the Platform.

"Order Form" means the order form executed by Customer and SHAED that references these Terms and Conditions.

"Party" means SHAED or Customer and "Parties" means both of them.

"Person" means an individual, corporation, partnership, unlimited liability company, governmental authority, unincorporated organization, trust, association, or any other entity.

"Platform" means the SHAED proprietary portal and software-as-a-service platform accessible by Customer in connection with the Services, including commercialevs.com and applicable microsites.

"Privacy and Security Policy" has the meaning set forth in Section 5.6.

"Privacy Laws" means all applicable federal, state, and local laws, rules, regulations, codes, directives, and industry standards relating to privacy.

"Processing" or "Process" means any operation or set of operations performed on data, including collection, recording, organization, storage, adaptation, alteration, retrieval, consultation, use, disclosure, dissemination, combination, restriction, erasure, or destruction.

"Product Content" means all content, data, and materials related to the Products provided by Customer, including descriptions, specifications, images, and pricing.

"Products" means any vehicles, goods, equipment, or services listed, offered, or sold through the Platform, as specified in the Order Form.

"Referral Fee" means any fee payable to SHAED based on sales of Products through the Platform, calculated as a percentage of the sale price or other basis as specified in the Order Form.

"Reimbursable Expenses" has the meaning set forth in Section 6.6.

"Renewal Term" means each successive renewal term following the Initial Term, as described in Section 7.2.

"Representatives" means a Party's employees, officers, directors, agents, contractors, and professional advisors.

"Resultant Data" means any data or information derived from Customer's use of the Platform, including usage statistics, performance metrics, and aggregated or anonymized data, and any information, data, or other content derived from SHAED's monitoring of Customer's access to or use of the Services.

"Services" means the products and services provided by SHAED to Customer pursuant to the Agreement, as set forth in the Order Form.

"SHAED Disabling Device" means any software, hardware, or other technology, device, or means (including any back door, time bomb, time out, drop dead device, software routine, or other disabling device) used by SHAED or its designee to disable Customer's or any Authorized User's access to or use of the Services automatically with the passage of time or under the positive control of SHAED or its designee.

"SHAED Materials" means the Platform, Services, Specifications, Documentation, and SHAED Systems and any and all other information, data, documents, materials, works and other content, devices, methods, processes, hardware, software, and other technologies, and inventions, including any deliverables, technical or functional descriptions, requirements, plans, or reports, that are provided or used by SHAED or any Subcontractor in connection with the Services or otherwise comprise or relate to the Services or SHAED Systems. For the avoidance of doubt, SHAED Materials include Resultant Data but do not include Customer Data.

"SHAED Personnel" means all individuals involved in the performance of Services as employees, agents, or independent contractors of SHAED or any Subcontractor.

"SHAED Systems" means SHAED's information technology infrastructure, including computers, software, hardware, databases, electronic systems (including database management systems),

and networks used to provide the Services, whether operated directly by SHAED or through the use of third-party services.

"Specifications" means the specifications for the Services set forth in the Documentation.

"Subcontractor" has the meaning set forth in Section 1.10.

"Term" means the period during which this Agreement is in effect, including the Initial Term and any Renewal Terms.

"Third Party" means any Person other than the Parties.

"Third Party IP Infringement Claim" has the meaning set forth in Section 11.2.

"Third-Party Materials" means any software, content, or services provided by third parties that are integrated with or accessible through the Platform.

"Transaction Fee" means any fee payable to SHAED based on transactions processed through the Platform, as specified in the Order Form.

"Uptime" means the percentage of time during any calendar month that the Platform is available for access and use, excluding scheduled maintenance periods.

"User" means any person or entity that accesses or uses the Platform.

"Available" means the Platform is available for access and use by Customer and its Authorized Users over the Internet and operating in material accordance with the Documentation.

"Capitalized Cost" or "Cap Cost" means the total amount financed under a Lease, including the cost of the vehicle and any additional products or services being financed.

"Customer Information" means, with respect to Lease Providers, the name of a potential Lessee and relevant origination and credit information, and the vehicle(s) and/or services to be leased and the proposed lease terms.

"Economic Value Share" means the fee payable to SHAED by a CaaS Provider based on cash flow performance of multiyear, contracted electrification project revenue streams from infrastructure performance, calculated in accordance with the methodology specified in the Order Form.

"Lease Provider" means a Platform Participant that provides vehicle and fleet financing through leasing services.

"Lease" means a lease agreement between a Lease Provider and a Lessee for vehicle or fleet financing.

"Lessee" means any Customer or User that enters into a Lease with a Lease Provider.

"Potential Lease" means a potential vehicle and fleet management service lease business opportunity generated by SHAED in the ordinary course of its business and operation of the Platform.

"Scheduled Downtime" means periods during which the Platform is unavailable due to routine maintenance, for which SHAED will use commercially reasonable efforts to (a) schedule between the hours of 12:01 a.m. and 5:59 a.m., U.S. Central Time; and (b) give Customer at least 48 hours prior notice.

"Service Credit" means, for Enterprise tier customers, a credit equal to five percent (5%) of the monthly Fees for any Service Period in which a Service Level Failure occurs, subject to the conditions specified in the Order Form.

"Service Level Failure" means a material failure of the Platform to meet the Uptime commitment specified in the Order Form as measured over the course of a calendar month.

"Service Period" means each calendar month during the Term.

[End of Terms and Conditions]

Version 2.0 - Effective February 2026